

CV 15 - 00996

UNITED STATES DISTRICT COURT FOR THE
EASTERN DISTRICT OF NEW YORK

MAUSKOPF, J.

MAROUANE HIYANE,

REYES, M.J.

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. STEPHEN JONES, Tax ID 921888,
Individually and in his Official Capacity, P.O. TAFARA LAYNE, Tax
ID 935961, Individually and in her Official Capacity, and UNDER
COVER OFFICER #261, Individually and in his Official Capacity,

Defendants.

COMPLAINT
JURY TRIAL
DEMANDED

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

2015 FEB 26 PM 12:31

FILED
CLERK

Plaintiff, MAROUANE HIYANE, by and through his attorneys, **THE LAW OFFICES
OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon
information and belief:

PRELIMINARY STATEMENT

1. Plaintiff bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff, MAROUANE HIYANE, is, and has been, at all relevant times, a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

9. At all times hereinafter mentioned, the individually named defendants were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

FACTS

13. On or about February 23, 2013, at approximately 6:05 p.m., plaintiff MAROUANE HIYANE, was lawfully present outside in the vicinity of 35-36 76 Street in Queens County in the State of New York.

14. At that time and place, the individually named defendant officers approached four individuals, including plaintiff, and placed them all under arrest.

15. At no time on or about February 23, 2013 did plaintiff commit any crime or violation of law.

16. At no time on or about February 23, 2013 did defendants possess probable cause to arrest plaintiff.

17. At no time on or about February 23, 2013 did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

18. Nevertheless, defendants handcuffed plaintiff's arms tightly behind his back.

19. Despite the officers knowledge that plaintiff had not engaged in any illegal activity, none interceded to interrupt the plaintiff's baseless arrest.

20. As a result of the defendants' unlawful conduct, plaintiff as charged with several charges related to Criminal Sale of a Controlled Substance.

21. Plaintiff was thereafter held for approximately seventy-two hours before being presented before a judicial officer.

22. In connection with plaintiff's arrest, the defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office.

23. As a result of defendants' unlawful conduct, plaintiff was thereafter held until approximately April 6, 2013 when he was released when all proceedings against him were adjourned in contemplation of dismissal.

24. The charges against plaintiff were dismissed in their entirety on October 3, 2013.

25. As a result of the foregoing, plaintiff MAROUANE HIYANE sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

27. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. §1983.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

30. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

31. Plaintiff MAROUANE HIYANE repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

32. As a result of the defendants' conduct, plaintiff was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined

without any probable cause, privilege, or consent.

33. As a result of the foregoing, plaintiff's liberty was restricted, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SECOND CLAIM FOR RELIEF
FOR FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

34. Plaintiff, MAROUANE HIYANE, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein.

35. Defendants failed to intercede to prevent or mitigate the injuries suffered by plaintiff as described above.

36. Defendant officers were presented with a realistic opportunity to prevent and/or mitigate the constitutional violations suffered by plaintiff as described above.

37. As a result of the foregoing, plaintiff, MAROUANE HIYANE, suffered deprivation of his liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

THIRD CLAIM FOR RELIEF FOR
DENIAL OF RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

38. Plaintiff MAROUANE HIYANE repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

39. Defendants fabricated knowingly false material evidence and forwarded said evidence to prosecutors at the Queens County District Attorney's Office.

40. As a result, plaintiff suffered deprivation of his liberty, as he was detained for over one month.

41. As a result of the foregoing, plaintiff's liberty was restricted, he was put in fear for his safety, and he was humiliated, without probable cause.

unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

48. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of plaintiff, MAROUANE HIYANE.

49. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

50. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

51. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, plaintiff was placed under arrest unlawfully.

52. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

53. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

54. All of the foregoing acts by defendants deprived plaintiff of federally protected

constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

WHEREFORE, the plaintiffs respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
February 23, 2015

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff



By: MATTHEW SHROYER (MS-6041)
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Docket No.
UNITED STATES DISTRICT COURT
EASTERN DISTRICT COURT OF NEW YORK

MAROUANE HIYANE,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. STEPHEN JONES, Tax ID 921880, Individually and in his Official Capacity, P.O. TAFARA LAYNE, Tax ID 935961, Individually and in her Official Capacity, and UNDER COVER OFFICER #261, Individually and in his Official Capacity,

Defendants.

SUMMONS AND COMPLAINT

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Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Matthew Shroyer